

The Bureau of Energy Efficiency Appointment and Terms and Conditions of Service of Deputy Director General (NMEEE) Rules, 2012

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The Bureau of Energy Efficiency Appointment and Terms and Conditions of Service of Deputy Director General (NMEEE) Rules, 2012

UNION OF INDIA

India

The Bureau of Energy Efficiency Appointment and Terms and Conditions of Service of Deputy Director General (NMEEE) Rules, 2012

Rule

THE-BUREAU-OF-ENERGY-EFFICIENCY-APPOINTMENT-AND-TERMS-AND-CONDITIONS-OF-SERVICE-OF-DEPUTY-DIRECTOR-GENERAL-NMEEE-RULES-2012 of 2012

Published on 22 October 2012

Commenced on 22 October 2012

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The Bureau of Energy Efficiency Appointment and Terms and Conditions of Service of Deputy Director General (NMEEE) Rules, 2012

Published vide Notification New Delhi, the 22nd October, 2012

Ministry of Power

G.S.R. 780(E). - In exercise of the powers conferred by clause (d) of sub-section (2) of section 56 read with sub-section (2) of section 10 of the Energy Conservation Act, 2001 (52 of 2001), the Central Government hereby makes the following rules for regulating the appointment and other terms and conditions of service to the posts of Deputy Director General, National Mission for Enhanced Energy Efficiency (NMEEE), Ministry of Power, to be implemented by the Mission Directorate, Bureau of Energy Efficiency, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Bureau of Energy Efficiency Appointment and Terms and Conditions of Service of Deputy Director General (NMEEE) Rules, 2012.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Energy Conservation Act, 2001 (52 of 2001) as amended by the Energy Conservation (Amendment) Act, 2010;

(b)

"Appointing Authority" means the Bureau;

(c)

"Mission Directorate" means the Bureau of Energy Efficiency set up under section 3 of the Act;

(d)

"Mission Director" means Director-General of the Bureau

(e)

"section" means a section of the Act;

(f)

"Schedule" means the Schedule annexed to these rules; and

(g)

words and expressions used herein and not defined but defined in the Act, shall have the meanings respectively assigned to them in the Act.

3.

Number of posts, classification, and scale of pay.

- The number of posts, its classification and the scale of pay attached thereto shall be as specified in columns (2) to (4) of the Schedule annexed to these rules.

4.

Method of recruitment, age limit, qualifications.

- The method of recruitment, age limit, qualifications and other matters relating to the said post shall be as specified in columns (5) to (13) of the said Schedule.

5.

Disqualifications.

- No person,-

(a)

who has entered into or contracted a marriage with a person having a spouse living; or

(b)

who, having a spouse living, has entered into or contracted a marriage with any person

shall be eligible for appointment to the said post:

Provided that the Central Government may, if satisfied that such marriage is permissible under the personal law applicable to such person and other party to the marriage and that there are other grounds for so doing, exempt any person from the operation of this rule.

6.

Power to relax.

- Where the Central Government is of the opinion that it is necessary or expedient so to do, it may, by order, for reasons to be recorded in writing, relax any of the provisions of these rules with respect to any class or category of persons.

7.

Saving.

- Nothing in these rules shall affect reservations, relaxation of age limit and other concessions required to be provided for the Scheduled Castes, the Scheduled Tribes, Ex-Servicemen and other special categories of persons in accordance with the orders issued by the Central Government from time to time in this regard.

Schedule

Name of the post

Number of post

Classification

Pay Band and Grade pay/Pay scale

Whether Selection or non-selection post

Age limit for direct recruits

(1)

(2)

(3)

(4)

(5)

(6)

Deputy Director General (Technical)

1

General Central Service Grade "A" Non-Ministerial

-Technical

PB4- Rs.37400-67000 + Grade Pay Rs.10,000.

Not applicable

*Not exceeding 50 years.(Relax able for Government servants up to five years in accordance with the instructions or orders issued by the Central Government.)

*Note: The crucial date for determining the age limit shall be the closing date for receipt of applications from candidates in India (and not the closing date prescribed for, those in Assam, Meghalaya, Arunachal Pradesh, Mizoram, Manipur, Nagaland, Tripura, Sikkim, Ladakh Division of Jammu and Kashmir State, Lahaul and Spiti District and Pangi Sub Division of Chamba District of Himachal Pradesh, Andaman and Nicobar Islands or the Union Territory Lakshadweep).

Educational and other qualifications required
for direct recruits

(7)

Essential-

(i) Master's Degree in Physics or Chemistry or Economics or Applied Economics or Business or Finance or Industrial Economics or Energy Planning and Economics from a recognized University;
or

Bachelor' Degree in Engineering from a recognized University;

(ii) Minimum of sixteen (16) years of experience in research or development or design or industrial or academic activities in Government Departments, Public Sector Undertakings,

Universities, or Research Institutions, Autonomous or Statutory Organizations.

Desirable -

(i) Doctorate Degree in Physics or Chemistry or Economics or Applied Economics or Business or Finance or Industrial Economics or Energy Planning and Economics or Engineering from a recognized University.

(ii) Post Doctorate research work or experience in the field of energy management, energy efficiency or energy conservation.

(iii) Person having over all perspective of National Energy Issues and Policies of the Government in the field of energy and for promotion of Energy Efficiency and its Conservation in the country;

(iv) Of the 16 years of experience referred to in (ii) above under the Essential qualifications, two (2) years be at a senior level in energy planning or energy management to enhance cost effective improvements in energy efficiency, energy conservation including administration of energy saving schemes and energy efficient systems in energy intensive large industries under the Energy Conservation Act, 2001 (52 of 2001).

Whether age, educational Qualifications prescribed for direct Recruits will apply in the case of promotees

Period of Probation, if any

Method of recruitment, whether by direct recruitment or by promotion or by deputation or transfer and percentage of the vacancies to be filled by various methods

(8)

(9)

(10)

Not applicable

One year for direct recruits.

By deputation or short-term contract failing which by direct recruitment

In case of recruitment by promotion or deputation or transfer, grades from which promotion or deputation or transfer or short-term contract is to be made.

(11)

Deputation or short-term contract: (a) Officers of Central or State Governments or Union territories or Public Sector Undertakings, or Universities, or Recognized Research Institutions, or Autonomous or Statutory Organizations. (i)

holding analogous posts on regular basis in the parent cadre or Department or organizations referred to in (a) above; or (ii)

with three years service in the grade rendered after appointment thereto on a regular basis in the scale of pay of PB

4-Rs.37400-67000 with grade pay of Rs. 8700 or equivalent, in the parent cadre or Department or organizations referred to in (a)

above. (b) possessing the educational qualifications and experience prescribed for direct recruits under column (7).

Note: Period of deputation including period of deputation in another ex-cadre post held immediately preceding this appointment

in the same or some other organization or Department of the Central Government shall ordinarily not exceed five years. The maximum age limit for appointment by deputation shall not exceed fifty six years as on the closing date of receipt of applications.

If a Departmental Selection Committee exists, what is its composition?

Circumstances in which Union Public Service Commission is to be consulted in making recruitment

(12)

(13)

The Departmental Selection

Committee consists of-

1. Secretary, Ministry of

Power.....Chairperson2.

Secretary, Ministry of New and Renewable Energy.....Member3.

Additional Secretary, Ministry of

Power.....Member4. Vice-Chancellor,

TERI (The Energy and Resources Institute) University, New

Delhi.....Member5.

Director-General, Bureau of Energy

Efficiency.....Member.

Consultation with the Union public Service Commission is not necessary.

(1)

(2)

(3)

(4)

(5)

(6)

Deputy Director General (Finance)

1

General Central Service Grade "A" Non-Ministerial

-Technical

PB4- Rs.37400-67000 + Grade Pay Rs.10,000.

Not applicable

*Not exceeding 50 years. (Relaxable for Government servants up to five years in accordance with the instructions or orders issued by the Central Government.)

*Note: The crucial date for determining the age limit shall be the closing date for receipt of applications from candidates in India (and not the closing date prescribed for, those in Assam, Meghalaya, Arunachal Pradesh, Mizoram, Manipur, Nagaland, Tripura, Sikkim, Ladakh Division of Jammu and Kashmir State, Lahaul and Spiti District and Pangti Sub Division of Chamba District of Himachal Pradesh, Andaman and Nicobar Islands or the Union Territory Lakshadweep).

(7)

Essential-

(i) Master's Degree in Economics or Applied Economics or Business or Finance or Industrial Economics or Energy Planning

and Economics from a recognized University; or
Bachelor' Degree in Engineering from a recognized University;
(ii) Minimum of sixteen (16) years of experience in financial matters or industrial financing activities in Government Departments or Public Sector Undertakings, or Universities, or Financial Institutions, or Autonomous or Statutory Organizations.

Desirable -

(i) Doctorate Degree in Economics or Applied Economics or Business or Industrial Economics or Energy Planning and Economics or Engineering from a recognized University.
(ii) Experience in working in Institutions or Organizations handling financial instruments.
(iii) Person having over all perspective of National Energy Issues and Policies of the Government in the field of energy and for promotion of Energy Efficiency and its Conservation in the country;
(iv) Of the 16 years of experience referred to in (ii) above under the Essential qualifications, two (2) years be at a senior level in financing or energy efficiency or energy related projects or development or promotion of financing mechanism for innovative financing for energy efficiency projects.

(8)

(9)

(10)

Not applicable

One year for direct recruits.

By deputation or short-term contract failing which by direct recruitment.

(11)

Deputation or short-term contract:(a) Officers of Central or State Governments or Union territories or Public Sector Undertakings, or Universities, or Recognized Research Institutions, or Autonomous or Statutory Organizations.(i) holding analogous posts on regular basis in the parent cadre or Department or organizations referred to in (a) above; or(ii) with three years service in the grade rendered after appointment thereto on a regular basis in the scale of pay of PB 4-Rs.37400-67000 with grade pay of Rs. 8700 or equivalent, in the parent cadre or Department or organizations referred to in (a) above.(b) possessing the educational qualifications and experience prescribed for direct recruits under column (7).

Note: Period of deputation including period of deputation in another ex-cadre post held immediately preceding this appointment in the same or some other organization or Department of the Central Government shall ordinarily not exceed five years.The maximum age limit for appointment by deputation shall not exceed fifty six years as on the closing date of receipt of applications.

(12)

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TERI (The Energy and Resources Institute) University, New

Delhi.....Member5.

Director-General, Bureau of Energy

Efficiency.....Member.

Consultation with the Union public Service Commission is not
necessary.

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